No. 5-23-0035

IN THE APPELLATE COURT OF ILLINOIS
FIFTH JUDICIAL DISTRICT

ACCURACY FIREARMS, LLC, et al.,
Plaintiffs-Respondents,

v.

Governor JAY ROBERT PRITZKER, in his official capacity; and KWAME RAOUL, in his capacity as Attorney General,
Defendants-Petitioners,

v.

and EMANUEL CHRISTOPHER WELCH, in his capacity as Speaker of the House; and DONALD F. HARMON, in his capacity as Senate President,
Defendants.

No. 2023-MR-4

The Honorable Joshua Morrison, Judge Presiding.

PETITION OF THE GOVERNOR AND ATTORNEY GENERAL FOR REVIEW OF TEMPORARY RESTRAINING ORDER UNDER ILLINOIS SUPREME COURT RULE 307(D)

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Pursuant to Illinois Supreme Court Rule 307(d), Defendants-Petitioners Governor JB Pritzker and Attorney General Kwame Raoul, in their official capacities, request that this court grant the petition and reverse, vacate, and dissolve the temporary restraining order ("TRO") entered by the circuit court on January 20, 2023.

1. On January 10, 2023, Public Act 102-116, which regulates the possession, sale, and manufacture of certain firearms, including assault weapons and large capacity magazines ("LCMs"), became law. See generally 720 ILCS 5/24-1.9 (new) & 1.10 (new). Relevant here, beginning January 10, 2023, the Act prohibits the knowing manufacture, delivery, sale, import, or purchase of assault weapons or LCMs, except sales to persons in other States or authorized to possess them. Id. 5/24-1.9(b), (e) & 1.10(b), (f). The Act also prohibits possession of assault weapons, though persons who lawfully possessed as of January 10, 2023 may continue to possess as long as they obtain an endorsement affidavit with the State Police, by January 1, 2024. Id. 5/24-1.9(c), (d) & 1.10(c). Similarly, while the Act prohibits possession of LCMs as of April 10, 2023, those who already possessed them may continue to do so. Id. 5/24-1.10(d).

2. Plaintiffs, who appear to be four gun stores and hundreds of individuals, brought this action alleging that the Act violated four provisions of the Illinois Constitution. The first three claims attacked the legislative process: plaintiffs alleged that the Act violated the single-subject rule in Article IV, Section 8(d); the three-readings requirement in Article IV, Section 8(d); and their procedural due process rights allegedly encompassed by those legislative requirements. In Count 4, plaintiffs claimed that by making certain professionals exempt from the Act's restrictions on assault weapons and LCMs, the Act violated the Illinois Constitution's equal protection clause.

3. On January 20, 2023, the circuit court entered a TRO that enjoined defendants from enforcing the Act against the plaintiffs in this action.

4. This court should reverse, vacate, and dissolve the circuit court's order of January 20, 2023, because plaintiffs failed to satisfy the standard to obtain a TRO. Plaintiffs did not show that they have a clear right in need or protection or were likely to succeed on the merits, that they would suffer any irreparable harm or lack an adequate remedy at law without emergency relief, or that the balance of the equities favored them rather than defendants or the public.

5. In further support of this petition, Defendants-Petitioners incorporate a memorandum that will be filed along with this petition.

WHEREFORE, Defendants-Petitioners ask that this court grant the petition, and reverse, vacate, and dissolve the temporary restraining order entered by the circuit court on January 20, 2023.

Respectfully submitted,

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